

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN NAMIBIA

Complete Community Opposition How-To

This guide uses the Namibian terms and bodies you'll actually run into — the EIA and the Environmental Clearance Certificate (ECC), the Environmental Commissioner, communal land and conservancies, the High Court — and explains each in plain words the first time.

INTRODUCTION & FRAMEWORK

The fight that has drawn the world's eyes to Namibia is the struggle over **oil-and-gas exploration in the Kavango Basin**, upstream of the Okavango Delta — and it teaches both truths a community must hold at once. When the Canadian company **ReconAfrica** began exploring across a vast licence area of some 3.5 million hectares in the Kavango East and West regions — overlapping community conservancies and edging one of Africa's greatest wetlands — local Indigenous and Kavango leaders, community forests, and conservancies organised. They documented the company drilling and clearing without the consultation and consent Namibian law and community rights require; they exposed an EIA process run in English-only jargon that never honestly told communities the risks; and they built an international campaign that reached from Kavango villages to the world's front pages. The company's reputation suffered, its finances faltered, and it was forced to pause. **That is real power** — a determined community and its global allies made a foreign company's life very hard.

The Kavango leaders, community forests, and conservancies who took on ReconAfrica drew on tools available to communities across Namibia, a constitutional democracy. An independent-ish **High Court** hears challenges. The **Environmental Management Act** requires an **EIA** and an **Environmental Clearance Certificate** before a project proceeds, with **public consultation**. A system of **communal land and community conservancies** gives rural communities real legal standing over their land. And the **constitution commits the state to protecting the environment**; protest, petition, and litigation are lawful, and Namibia has a history of communities holding the line, as the **Himba** did against a major dam on the Kunene, ultimately shelved. But these tools have real limits, and this guide states them plainly. The Kavango mobilisation has not, so far, stopped ReconAfrica — and the system has at times punished those who resisted: when community forest and conservancy organisations went to the **High Court** in 2021 to halt the exploration and challenge the **Environmental Clearance Certificate**, the court **dismissed** their complaints, and they faced the threat of paying the government's and the company's legal costs. The government has defended the exploration, and the company has returned again and again. So Namibia shows both what a determined community and its allies can win — delay, exposure, documented violations, real cost to a company — and how hard an outright stop is when the state backs the project.

The Whole Strategy in One Idea

A big project looks unstoppable, but it's a chain of approvals, and a chain breaks at its weakest link. A large Namibian project needs its **Environmental Clearance Certificate** (from the **Environmental Commissioner**), resting on an EIA with **public consultation**; on communal land it needs to respect **conservancy and traditional-authority rights and consent**; it can be challenged in the **High Court**; and it needs public acceptance. Every one of those is a link you can grab. **Find the one closest to your hand and pull.**

Be Honest About Which Fight You're In

Before you spend a year on this, work out your real situation:

- **If it's on communal land, in a conservancy, and consent and consultation were skipped, that's a real lever** — community rights over communal land are genuine.
- **If the EIA or its consultation was defective, that's a ground** — though, as the Kavango case shows, the court may not agree.
- **If the state backs the project, an outright stop is hard** — aim honestly at delay, documented violations, exposure, and real cost to the company, and beware the adverse-costs risk of litigation.

Read the whole guide once before you move. Two habits run through it: **use the rights the law gives you** — the consultation, the ECC process, communal-land rights, the High Court — and **run every front at once**: the documents, the consultation, the courts, the movement, the international press. That's how the Kavango communities made a foreign company falter.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides

The core environmental decision is the **Environmental Clearance Certificate (ECC)**, issued by the **Environmental Commissioner** (in the environment ministry, MEFT) on the basis of an EIA with public consultation. Sectoral licences — for mining, or oil and gas — come from the relevant ministry (Mines and Energy). On **communal land**, the **traditional authority** and, where one exists, the **community conservancy** hold rights, and the **Communal Land Boards** administer land rights. Know which decision you can contest, and aim there.

How a Project Moves — and Where You Jump In

The EIA and public consultation. The developer's consultant prepares the EIA, with a **public-consultation** process. *Your opening* — and it arms every later step: take part, put your objections on the record, and insist the consultation is genuine and in a language people understand (its failure was central in the Kavango).

The ECC. The Environmental Commissioner issues the certificate. *Your opening*: appeal to the **Minister**, and — carefully — challenge it in the High Court.

Construction and operation. *Your opening*: drilling or clearing without the required consent or permits, and breaches of the ECC — documented and exposed, as the Kavango communities did.

Follow the Money and the Permissions

Dig up three things. **Who's behind it and who owns them** — a foreign explorer has investors and a share price to protect (the Kavango campaign hit ReconAfrica's finances and reputation hard). **What it still needs** — the ECC not final or under challenge, consent not obtained, financing not closed: whatever's missing is the soft spot. **Who's paying** — banks and investors, and any politically-connected middlemen worth exposing.

Who's Supposed to Be Watching

Each is an ally or an arena. The **Environmental Commissioner and the environment ministry** run the ECC and can be pressed. The **High Court** reviews the legality of decisions — though it may side with the company. The **traditional authorities and conservancies** hold communal-land rights. The **Ombudsman** takes complaints about administration and human rights. And Namibia's **conservancies, environmental organisations (like the Namibian Chamber of the Environment), and a free press with strong international reach** are the forces that reach furthest — the combination that made ReconAfrica falter.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether communal-land consent was skipped, whether the EIA was defective, how strong the international attention is, and how set the state is on the project.

What you do	Roughly works	How long	Cost	What "works" means
Just gather documents	5–10%	weeks	low	The base for everything else
Objections in the public consultation	15–35%	during EIA	low	On record; conditions or a redo
Appeal the ECC to the Minister	15–40%	months	low	Certificate reviewed or conditioned
High Court challenge	20–45%	1–3 yr	mod (adverse-costs risk)	ECC set aside; works halted
Communal-land / consent lever	25–50%	varies	low	Project stalled for lack of consent
Documenting violations + exposure	25–50%	months–yr	low	Company paused; cost and delay
International campaign	30–55%	months–yr	low	Investors spooked; company falters
Everything together (communal land, world watching)	35–60%	1–4 yr	mod	Stalled, delayed, exposed, costly
Everything together (state-backed, clean process)	15–40%	1–4 yr	mod	Delayed, conditioned, exposed

The levers that move the needle most are the **communal-land/consent lever**, **documented violations plus international exposure**, and — where it fits — the **High Court**, backed by the movement. The Kavango case shows both the ceiling (a foreign company made to falter) and the honest floor (the court challenge lost, the state defended the project). So aim for the full range of wins — delay, exposure, documented violations, real cost — not only an outright stop.

*On cost: objecting, documenting, and organising are cheap, and communal-land rights and conservancies give rural communities genuine standing. But High Court litigation carries a real **adverse-costs risk** — the Kavango communities faced the threat of paying the other side's costs — so weigh it carefully and seek pro-bono or NGO support.*

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this ECC, this missing consent, this violation — is strong. Answer five questions in writing.

1. What is it, and who's behind it? Name the project, the company, its owners, its financiers, any connected middlemen.

2. Where is it, and what does it touch? Get the licence area and lay it over communal land and conservancies, water and river basins, wetlands, grazing land, protected areas. **Communal land, a conservancy, and water are your sharpest levers**, so this map is your most important document — the Kavango turned on conservancy land and the Okavango.

3. What stage is it at, and what's the next deadline? Is the EIA in consultation? Has the ECC been issued (opening the appeal and the court window)? Is drilling already happening without consent? These openings are time-bound.

4. What does it still need that it lacks? An ECC not final, consent not obtained, a permit not granted. The missing piece is the soft spot.

5. Who else is affected, and who already opposes it? Conservancies, traditional authorities, community forests, neighbouring communities, national and international organisations. The Kavango united conservancies with a global campaign.

What this looks like in real life. A community learns an exploration or mining licence covers its conservancy and threatens its water, with a jargon-filled EIA and no real consent. The five questions yield: a foreign company (and its investors); a licence over conservancy land and water (the levers); an EIA in consultation or an ECC just issued; a project still needing consent; and a coalition of conservancies and international allies. That's the Kavango pattern — document the missing consent and any illegal work, and build the exposure campaign.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof — and the Kavango campaign ran on documented violations. Build it in three layers.

Layer one: the paper trail. Get the documents the decision rests on — the EIA, the ECC and its conditions, the licences, the consultation record. Namibia's access-to-information rights and the ECC's public register let you demand what isn't public. Then read the EIA hard for flaws — a consultation run in a language people couldn't follow, an understated impact on water or land, consent that was never obtained, a risk never honestly disclosed (the Kavango failings).

Layer two: the ground truth. Dated, located photographs and video of the site, the drilling or clearing, the water, the grazing land — baseline images before any damage most of all — and the testimony of affected residents. Documented **illegal work** — drilling or clearing without the required permit or consent — is powerful evidence, as the Kavango communities showed.

Layer three: the map of rights and water. Lay the project over communal land and conservancies, water and river basins, and protected areas, so each lever is visible. Walking into the High Court, or before the world's press, with the EIA, the ECC, and that map is what makes them act.

WHAT TO GATHER, AND WHERE TO FIND IT

- **The EIA, the ECC and conditions, the licences, the consultation record** — from the environment ministry and its ECC register; force out the rest under the access-to-information rules (8A).
- **Communal-land and conservancy records** — from the conservancy, the traditional authority, and the Communal Land Board.
- **Ownership and financing** — company and investor records, and any connected middlemen.
- **The rights-and-water map** — communal land and conservancies, water and river basins, and protected areas, laid over the licence.
- **Dated site evidence and named testimony** — photographs marked with date and place, and documentation of any work done without consent or permits.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; people give you power — and the Kavango's conservancies and global allies made a company falter. Build your coalition in four moves.

Start with a tight core. The neighbours most affected, the conservancy and traditional-authority leaders, the people who know the land and water, and a few tireless organisers.

Centre communal-land and Indigenous leadership. Where communal land, conservancies, and Indigenous peoples are engaged, they hold the strongest legal ground; build the campaign around supporting that leadership, at their direction.

Build the coalition — local, national, and international. Namibia's wins reach furthest when local conservancies join with national organisations (like the Namibian Chamber of the Environment) and an international campaign that reaches the company's investors. Hold meetings where people see the evidence — the map of the licence over their conservancy and water.

Build to last, and weigh the risks. Namibian fights run for years, and the company keeps returning. Build clear roles, a secure shared archive, a way to decide together, and a plan for the financial and emotional toll — and weigh the **adverse-costs risk** of litigation carefully, seeking NGO or pro-bono support before going to court.

STEP 4: LEGAL CHALLENGES & COMMUNAL-LAND RIGHTS

Law is a real Namibian lever — but use it with open eyes, because the courts may side with a state-backed project, and litigation carries a costs risk.

Object First — It Builds the Record

Everything downstream is stronger if you took part in the EIA consultation and put your objections — especially on consent and the defective consultation — on the record. The courts review the ECC on that record, so your objections are the raw material of any challenge.

The ECC, the Minister, and the High Court

If the ECC is granted, you can **appeal to the Minister**, and — carefully — challenge it in the **High Court** by judicial review, seeking an interdict to halt the works. The grounds are the familiar ones: a defective EIA, a consultation that never genuinely reached the community, a decision made unlawfully. Be clear-eyed: the Kavango communities' High Court challenge was **dismissed**, and they faced an adverse-costs threat — so weigh litigation carefully, build the strongest possible case, and secure costs protection or NGO backing.

Communal Land, Conservancies, and Consent

Namibia's distinctive lever is **communal-land and conservancy rights**. On communal land, a project needs to respect the rights of the **traditional authority** and the **community conservancy**, and to obtain **consent**; work done without it — as documented in the Kavango — is a violation you can expose and challenge. This consent lever is often your strongest and safest ground, and it sits behind the international campaign.

The Honest Limits

Straight talk: the courts are real but may back a state-backed project, litigation carries an adverse-costs risk, and the government promotes exploration and mining hard. So use the tools — the consultation, the ECC appeal, communal-land rights, the High Court where the case is strong — but pair them with documented violations, the movement, and above all the international exposure that hits a company's investors, and count delay, exposure, documented violations, and real cost as wins alongside an outright stop.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

A missing consent becomes a violation. Not "we don't want the drilling" but *"this is on our conservancy's communal land, and the consent the law requires was never obtained."*

A defective consultation becomes a legal flaw. *"The EIA 'consultation' was run in English-only jargon and never honestly told us the risks — the clearance doesn't meet the law's requirements."*

Illegal work becomes exposure. *"The company drilled inside our conservancy without the required permit — here is the documentation."*

The harm becomes an international story. *"A foreign company is risking the water of our communities and one of Africa's greatest wetlands, without our consent."*

Match it to the venue: the objections to the Environmental Commissioner; the defective consultation and unlawful decision to the Minister and the High Court; the missing consent to the traditional authority and the courts; the illegal work and the harm to the national and international press.

STEP 5: MEDIA STRATEGY

In Namibia, publicity — especially international — is a decisive lever, because it reaches a foreign company's investors and reputation, as the Kavango campaign proved. A free press with strong international reach makes the media front central.

Lead with people, place, and consent. Not "the ECC was procedurally deficient" but "a foreign company is risking our water and one of Africa's greatest wetlands, on our communal land, without our consent." Use your strongest material: dated photographs, documented illegal work, the map of the licence over the conservancy and the Okavango, and community voices.

Work several audiences at once — reach the investors. Local and national press build domestic pressure; the international press and conservation networks reach the company's shareholders and lenders, where a foreign explorer is most vulnerable. Make it easy: captioned photos, accurate summaries, a map, strong interviews.

Two hard rules. Accuracy above all — one exaggeration can discredit everything and invite a lawsuit. And protect people — get legal advice, and let the community decide what is said and by whom.

EMAILS & LETTERS

Make them your own; keep them short, exact and calm; keep a copy of everything.

8A — Access-to-information request (to the environment ministry).

Subject: Request for the EIA and ECC — [project].

"We, residents of [place], request the EIA, the Environmental Clearance Certificate and its conditions, the licences, and the consultation record for [project] at [location]. [Contact.]"

8B — Objection in the EIA consultation.

Subject: Objection — public consultation on [project].

"We, residents of [place / conservancy], object to the clearance of [project]: [it is on our communal land without our consent; the consultation was run in a language we could not follow and hid the risks; it threatens our water]. We ask that clearance be refused. [Attach evidence.]"

8C — Appeal the ECC to the Minister.

Subject: Appeal against the Environmental Clearance Certificate for [project].

"We appeal the ECC for [project], issued on [date], to the Minister, on the grounds that [the consultation was defective / our consent was never obtained / the decision was unlawful]. [Attach the ECC and our evidence.]"

8D — To a lawyer / environmental organisation (High Court, carefully).

Subject: Possible High Court challenge — [project].

"Our community/conservancy faces [project] on our communal land, cleared without our consent and on a defective EIA. We've gathered [the EIA, the ECC, photographs, documentation of illegal work]. We ask for your advice on a challenge and an interdict — and on managing the adverse-costs risk. [Contact and evidence summary.]"

8E — To the traditional authority / conservancy.

Subject: Our land, our consent, and [project].

"[Project] is proceeding on our communal land without the consent the law requires. As [the traditional authority / conservancy], we ask you to assert our rights and withhold consent, and to stand with the community. [Attach evidence.]"

8F — To a financier or investor (international).

Subject: Legal, environmental, and reputational risk in [project].

"We understand your institution may be [financing / invested in] [project] at [location], which proceeds on communal land without consent, on a defective EIA, and threatens one of Africa's greatest wetlands. We ask you to weigh this against your own standards. [Contact and evidence summary.]"

8G — Letter to the (international) press.

Subject: [Community] moves to protect [water / wetland / land] from [project].

"For generations the people of [place] have depended on [the water / the land] at [location], on the edge of [the Okavango / a great wetland]. Now [project], by [a foreign company], threatens it — without our consent. We can provide photographs, documented violations, a map and interviews. [Contact.]"

8H — Rallying the community.

Subject: We can protect our land and water — here's how.

"[Project] threatens [our land / water / conservancy]. In the Kavango, communities documented the violations and built a global campaign that made a foreign company falter. With our communal-land rights, the consultation, the courts, and international attention behind us, we have a real chance. Please join us: object, document, withhold consent, and stand together. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean, do these six things, in order:

- 1. Nail down the project and its footprint, and look for the levers.** Communal land, a conservancy, and water are your sharpest.
- 2. Object in the EIA consultation (8B), and assert your consent rights through the traditional authority/conservancy (8E).**
- 3. Request the documents (8A), and read the EIA for a defective consultation and missing consent.**
- 4. Photograph everything, with dates and places — and document any work done without consent or permits.**
- 5. Get advice before litigating (8D) — the adverse-costs risk is real — and appeal the ECC to the Minister (8C).**
- 6. Build the coalition and go international (8F/8G/8H).** The Kavango campaign hit the company's investors.

Even lean, those six use your rights, document the violations, protect against the costs risk, and open the international front.

WHEN THE SYSTEM IS TILTED

Namibia's tools are real, but the field can be tilted, and you must plan for it.

When the state backs the project. The government may defend the exploration and the court may side with it. Don't fold: press the consent lever, document violations, and take the campaign international, where

a foreign company is most vulnerable.

When litigation is a costs risk. The Kavango communities faced the threat of paying the other side's costs. Weigh litigation carefully, seek costs protection and NGO backing, and don't stake everything on the court.

When consultation is a formality — or in the wrong language. A jargon-filled, English-only "consultation" is not consultation. Document the failure; it's a ground, and a powerful story.

When the company keeps returning. It will. Keep the coalition and the documentation alive across each new venture, and keep the investor pressure on.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

Namibia has faced serious corruption scandals over the granting of resource rights, so this matters — politically-connected middlemen have featured in exactly these fights.

How to spot it. Clearances against the evidence; a licence steered through a connected intermediary; consent manufactured or bypassed; benefits to the connected while the community carries the harm.

Who's supposed to guard against it. The **Anti-Corruption Commission** investigates graft. The **Ombudsman** takes administrative and human-rights complaints. The **Auditor-General** examines public money. The **High Court** can set aside a tainted decision. And Namibia's **investigative press**, with strong international reach, has exposed captured resource deals.

How to fight it safely. Document precisely and factually — how the process was bent, who benefits, what the law required — and keep clear the line between what you can prove and what you suspect. Route serious evidence to the Anti-Corruption Commission, the Ombudsman, and trusted journalists rather than making accusations you can't back. Pair the exposure with the legal challenge and the public campaign.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together. The documents build your proof; the consent lever aims it; organising builds the muscle; the ECC appeal and the courts press the case; the international media raises the cost on the company. Together they multiply. One at a time, they stall.

Early on (weeks 1–8): nail down the project, its footprint, and any communal land or water; object in the consultation and assert consent; request the records; photograph the baseline and document any illegal work; build your coalition, local to international.

In the thick of it (months–years): appeal the ECC to the Minister; consider a High Court challenge carefully (mind the costs risk); press the consent lever; open the international media front.

The long haul (years): carry any litigation and the exposure campaign; keep the coalition and the documentation alive across the company's returns; hold the line for delay, documented violations, exposure, real cost, or an outright stop.

FINAL ASSESSMENT

Stopping a destructive project in Namibia can be done — Kavango communities and their global allies documented the violations and made a foreign oil company falter — and the same fight is honest about the limit: the High Court challenge was dismissed, and the state defended the exploration. Hold both. Namibia's

tools are real: an EIA and ECC system with consultation; communal-land and conservancy rights that give rural communities genuine standing; a High Court; and a free press with strong international reach. And the constraints are real: courts that may back a state-backed project, an adverse-costs risk in litigation, and a government that promotes exploration hard.

Here's the discipline that wins. Find the communal-land and consent lever and the flaw in the EIA, and pry loose the record. Object in the consultation, assert consent through the traditional authority and conservancy, and document every violation. Appeal the ECC, and litigate only with the costs risk managed and NGO backing secured. Build the coalition from the conservancy to the world, and take the exposure to the company's investors, where it is weakest. Count delay, documented violations, exposure, and real cost as wins alongside an outright stop. That's what the Kavango communities did — the conservancies, the documented wrongs, and a global campaign together. So can you.